

ULTRA EXTREME RISK VENDOR SELLING MASTER AGREEMENT

This Ultra Extreme Risk Vendor Selling Master Agreement ("Agreement") is made on this ____ day of _____, 20____, by and between: Buyer/Principal:

_____ Address:

_____ AND Vendor:

_____ Address:

_____ This Agreement governs the sale of goods and/or services classified as ULTRA EXTREME RISK, including but not limited to regulated financial instruments, hazardous materials, volatile assets, controlled technologies, sensitive data services, or any transaction involving substantial financial, legal, regulatory, operational, or reputational exposure.

1. **Absolute Risk Acceptance:** Vendor acknowledges that the transaction involves foreseeable and unforeseeable extreme risks and accepts full legal, financial, and operational responsibility without limitation.
2. **Time of Default:** Vendor shall be deemed in automatic default immediately upon (a) regulatory inquiry, (b) failure to meet delivery timelines, (c) breach of compliance obligations, (d) insolvency indicators, or (e) any material adverse event. No cure period is required unless expressly granted in writing by Buyer.
3. **Irreversibility & Reversibility Control:** All transactions shall be considered irreversible unless Buyer elects otherwise. Buyer retains unilateral authority to reverse, suspend, claw back payments, or cancel deliverables in cases of risk escalation, non-compliance, or reputational exposure.
4. **Budget Consideration & Financial Exposure:** Vendor acknowledges that Buyer budget allocations do not limit Vendor liability. Under no circumstance shall budget constraints reduce Vendor's indemnity, damages, penalties, or reimbursement obligations.
5. **Unlimited Indemnification:** Vendor shall indemnify, defend, and hold harmless Buyer, its affiliates, directors, officers, employees, and agents from ANY and ALL claims, fines, regulatory penalties, criminal liabilities, civil damages, loss of profits, reputational harm, and consequential damages arising directly or indirectly from Vendor conduct.
6. **Negative Covenant – No Limitation of Liability:** Vendor expressly waives any limitation of liability, exclusion of consequential damages, or liability caps. All damages shall be fully recoverable without financial ceiling.
7. **Insurance & Financial Security:** Vendor shall maintain high-limit insurance coverage including product liability, cyber liability, environmental liability, and professional indemnity insurance. Buyer may require performance bonds or escrow reserves.
8. **Immediate Suspension & Termination:** Buyer may immediately suspend payments, operations, or terminate this Agreement upon suspicion of breach, regulatory risk, data breach, fraud, or material adverse change.

9. Compliance & Audit Rights: Buyer retains unrestricted rights to conduct audits, forensic reviews, background checks, compliance inspections, and third-party investigations without prior notice.

10. Personal & Joint Liability: Vendor representatives executing this Agreement accept joint and several personal liability for fraud, gross negligence, willful misconduct, or regulatory violations.

11. Financial Clawback & Set-Off Rights: Buyer may offset or claw back any payments made in the event of breach, misrepresentation, or non-compliance.

12. Data Breach Obligation: Vendor must notify Buyer within 24 hours of any actual or suspected breach and bear all remediation costs, including regulatory reporting and credit monitoring.

13. Force Majeure Restriction: Force majeure shall not excuse compliance failures, data protection breaches, safety violations, or regulatory non-conformance.

14. Survival of Liability: Indemnification, liability, confidentiality, and compliance obligations survive termination indefinitely without limitation.

15. Governing Law & Dispute Resolution: Disputes shall be resolved through binding arbitration under the governing law specified below. Buyer reserves the right to seek injunctive relief in competent courts.

RISK ACKNOWLEDGMENT: Vendor confirms full understanding of the extreme risk exposure and agrees that no representation, warranty, or expectation of profit mitigates Vendor's obligations under this Agreement. Governing Law: _____ IN

WITNESS WHEREOF, the parties execute this Agreement: Buyer Signature:

_____ Date: _____ Name & Title:

_____ Vendor Signature: _____ Date:

_____ Name & Title: _____